

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with any interest payable thereon, out of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

4. This Act may be cited as the Consolidated Fund (No. 2) Short title. Act, 1961.

CHAPTER 13

An Act to increase the rates of national health service contributions and to amend the National Health Service Contributions Act, 1957, and for purposes connected therewith.
[28th March, 1961]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards providing such sums as may be required for the national health service in England and Wales, and in Scotland, have freely and voluntarily resolved to give and grant unto Your Majesty the increased contributions hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the National Health Service Contributions Act, 1957 (in this Act referred to as "the principal Act"), the provisions set out in the First Schedule to this Act shall be substituted, as from the appointed day, for the existing provisions of the First Schedule to that Act.

Higher rates of national health service contributions and supplementary provisions relating thereto

(2) As from the appointed day, any reference in the principal Act to a column or paragraph of the First Schedule to that Act

shall be construed as a reference to the corresponding column or paragraph of the provisions substituted by the preceding subsection for the existing provisions of that Schedule.

(3) The provisions of the Second Schedule to this Act (which contains minor amendments of the principal Act) shall have effect.

(4) Subsection (6) of section three of the principal Act (which relates to the Crown) and section five of the principal Act (which relates to Northern Ireland) shall apply in relation to this Act as they apply in relation to that Act.

(5) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in—

- (a) the expenses so payable under subsection (3) of section four of the principal Act;
- (b) the sums so payable under subsection (4) of that section (which relates to financial adjustments with Northern Ireland and the Isle of Man).

(6) The National Health Service Contributions Act, 1958, is hereby repealed as from the appointed day.

(7) In this Act “the appointed day” means such day as the Treasury may appoint by order made by statutory instrument, and any reference to the existing provisions of the First Schedule to the principal Act is a reference to the provisions substituted by the National Health Service Contributions Act, 1958, for the provisions of that Schedule as originally enacted.

Short title,
citation
and extent.

2.—(1) This Act may be cited as the National Health Service Contributions Act, 1961; and the National Health Service Contributions Act, 1957, and this Act may be cited together as the National Health Service Contributions Acts, 1957 and 1961.

(2) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provisions of the National Insurance Acts, 1946 to 1960, relating to Northern Ireland, this Act, except subsection (4) of the preceding section, shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 1

PROVISIONS TO BE SUBSTITUTED IN FIRST SCHEDULE TO NATIONAL
HEALTH SERVICE CONTRIBUTIONS ACT, 1957

RATES OF NATIONAL HEALTH SERVICE CONTRIBUTIONS

<i>Description of person</i>	<i>Weekly rate of contribution s. d.</i>
1. Employed men between the ages of 18 and 70, not including men over the age of 65 who have retired from regular employment	2 8½
2. Employed women between the ages of 18 and 65, not including women over the age of 60 who have retired from regular employment	2 0½
3. Employed boys and girls under the age of 18 ...	1 4½
4. Employers	7½
5. Self-employed men between the ages of 18 and 70, not including men over the age of 65 who have retired from regular employment	2 10
6. Self-employed women between the ages of 18 and 65, not including women over the age of 60 who have retired from regular employment	2 2
7. Self-employed boys and girls under the age of 18 ...	1 6
8. Non-employed men between the ages of 18 and 65...	2 10
9. Non-employed women between the ages of 18 and 60	2 2
10. Non-employed boys and girls under the age of 18...	1 6

SECOND SCHEDULE

Section 1.

AMENDMENTS OF NATIONAL HEALTH SERVICE
CONTRIBUTIONS ACT, 1957

1.—(1) Each of the Acts mentioned in the next following sub-paragraph shall, to the extent specified in sub-paragraph (3) of this paragraph, be deemed as from the appropriate date to have been included among the Acts mentioned in subsection (1) of section one of the principal Act; and that subsection, and any reference in the principal Act to “the National Insurance Acts”, shall have effect, and be deemed to have had effect, accordingly.

(2) The said Acts are the National Insurance Act, 1957, the National Insurance (No. 2) Act, 1957, the Family Allowances and National Insurance Act, 1959, the National Insurance Act, 1959, and the National Insurance Act, 1960.

2ND SCH.

(3) The following provisions of the said Acts, that is to say—

(a) subsections (1) and (2) of section one, and section seven, of the National Insurance Act, 1959, in so far as they relate to matters other than graduated contributions and payments in lieu of contributions, and

(b) the whole of each of the other Acts in so far as it is included among the Acts which may be cited together as the National Insurance Acts, 1946 to 1960,

shall be deemed to have been included as mentioned in sub-paragraph (1) of this paragraph.

(4) Subsection (4) of section three of the principal Act shall have effect, and shall be deemed to have had effect as from the passing of the National Insurance Act, 1959, as if after the words "National Insurance Acts" there were inserted the words "the National Insurance Act, 1959 (in so far as, for the purposes of this Act, it is not included among the National Insurance Acts)".

(5) Notwithstanding anything in the preceding sub-paragraphs, nothing in subsections (1) and (2) of section three of the principal Act shall be construed as affecting, or as having affected, the rates of any contributions; and nothing in section two of that Act shall be taken to have reduced the rates of any contributions, other than those in force at the passing of that Act, and in subsection (1) of that section the words from "and the payment" onwards are hereby repealed.

(6) In this paragraph "the appropriate date", in relation to the National Insurance Act, 1957, means the date of the passing of the principal Act, and, in relation to each of the other Acts mentioned in sub-paragraph (2) of this paragraph, means the date of the passing of each such Act respectively.

2. For the purposes of the making of any regulations after the passing of this Act (including any regulations varying or revoking regulations made either before or after the passing thereof) subsection (7) of section three of the principal Act (which empowers the Minister of Health and the Secretary of State by regulations to make special provision with respect to masters and members of the crews of foreign-going ships) shall have effect as if, for the words "The Minister of Health and the Secretary of State may jointly", there were substituted the words "The Treasury may".

3. Section four of the principal Act (which contains financial provisions) shall have effect, and shall be deemed to have had effect as from the passing of that Act, as if—

(a) in subsection (1), after the words "his expenses" there were inserted the words "and (subject to subsection (3A) of this section) those of any other government department", and at the end of that subsection there were inserted the words "and in estimating expenses for the purposes of this subsection there shall be included such amounts as are mentioned in paragraphs (a) and (b) of subsection (2) of section thirty-eight of the Act of 1946 (which paragraphs relate respectively to liabilities on account of pensions and other payments

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and to the use of premises belonging to the Crown), in so far as those amounts are determined by the Treasury to be attributable to the collection and application of national health service contributions”;

- (b) in subsection (3), for the words from “administrative expenses” to “Secretary of State” there were substituted the words “expenses incurred by the Minister of Pensions and National Insurance or (subject to subsection (3A) of this section) by any other government department in carrying this Act into effect”;
- (c) after subsection (3), there were inserted the following subsections:—

“(3A) Without prejudice to the operation of any enactment requiring payment to be made by the Minister of Pensions and National Insurance for work done by the Postmaster General, and without prejudice to the taking into account, as expenses incurred by that Minister, of payments so made by him, any reference in the preceding provisions of this section to expenses of government departments shall, in relation to any time on or after the first day of April, nineteen hundred and sixty-one, be construed as not including any expenses incurred by the Postmaster General.

(3B) Any expenses, or amounts included in estimating expenses, in so far as, for the purposes of subsection (1) of this section, they are treated as attributable to the collection and application of national health service contributions, shall be left out of account under section thirty-eight of the Act of 1946”; and

- (d) in subsection (6), for the words “that Minister’s expenses” there were substituted the words “so much of the expenses and amounts, in respect of which sums are required to be retained under subsection (1) of this section, as is”.

Table of Statutes referred to in this Act

Short title	Session and chapter
National Insurance Act, 1957	5 & 6 Eliz. 2. c. 26.
National Health Service Contributions Act, 1957	5 & 6 Eliz. 2. c. 34.
National Insurance No. 2 Act, 1957	6 & 7 Eliz. 2. c. 1.
National Health Service Contributions Act, 1958	6 & 7 Eliz. 2. c. 20.
Family Allowances and National Insurance Act, 1959	7 & 8 Eliz. 2. c. 18.
National Insurance Act, 1959	7 & 8 Eliz. 2. c. 47.
National Insurance Act, 1960	9 Eliz. 2. c. 5.